STATE OF COLORADO

Bill Owens, Governor
Douglas H. Benevento, Executive Director

Dedicated to protecting and improving the health and environment of the people of Colorado

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Located in Glendale, Colorado

http://www.cdphe.state.co.us

Laboratory Services Division
8100 Lowry Blvd.
Denver, Colorado 80230-6928
(303) 692-3090

Colorado Department
of Public Health
and Environment

RECEIVED
JUL 23 2003
BOULDER COUNTY
LAND USE DEPT.

July 21, 2003

Maureen Jacoby
Banks and Gesso, LLC
720 Kipling St., Suite 117
Lakewood, CO 80215

Re: Updated Operations Plan for CEMEX, Inc.
Use of Tire Derived Fuel (TDF)
SW BLD SOU 2.2

Dear Ms. Jacoby:

The "Updated Operations Plan for Certificate of Designation as Solid Waste Disposal Site for Tire Derived Fuel (TDF) Use at the Lyons Cement Plant" has been reviewed. The document was drafted in response to a Department letter dated April 14, 2003 concerning CEMEX's request for a regulatory determination regarding the Certificate of Designation and the use of tire derived fuel at the plant. The Department determined that the Operations Plan should be updated to accommodate the proposed upgrades to tire handling equipment and storage and listed a number of areas for CEMEX to address. Additionally, the Department informed CEMEX that it would seek public comment and to that end a formal public comment period was opened from June 13, 2003 through July 18, 2003. No technical comments were received as of the close of business July 18, 2003. The topics listed in the April 14, 2003 Department letter have been addressed in the above referenced technical document.

The revised Operations Plan is approved and CEMEX may proceed with its plans providing that it meets any requirements established by Boulder County and has and maintains a valid air emissions permit.

If you have any questions regarding this topic please contact me at 303/692-3445.

Sincerely,

Glenn F. Mallory
Solid Waste Unit Leader
Compliance Program

Cc John Lohr, CEMEX
Gabi Hoefler, Boulder County
Pat Mayne, Boulder County
David Callahan, Boulder County
Boulder County Commissioners

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Colorado Department
of Public Health
and Environment

Howard Roitman, Division Director
Hazardous Materials and Waste Management Division

Fax Transmission Sheet
Fax #: (303) 759-5355

Fax

IMMEDIATE DELIVERY TO: MAUREEN JACOBY @ 303/274-8329 ✓

~~COMPANY/AGENCY~~: DAVID CALLAHAN @ 303/241-4856

TELEPHONE #:

TELEFAX #:

FROM: GLENN MALLORY

TELEPHONE: 303/692-3445

SUBJECT: CEMEX PUBLIC REVIEW PERIOD

DATE: 6/13/03

NUMBER OF PAGES TO FOLLOW: 3

COMMENTS

Colorado Department of Public Health and Environment

"To protect and improve the health and environment of the people of Colorado"

NEWS

4300 Cherry Creek Drive South, Denver, CO 80246 • (303) 692-2000

Contact: Derek Boer, Community Relations Specialist 303-692-3329

(For immediate release) Friday, June 13, 2003

CEMEX REQUESTS REVIEW OF DESIGN AND OPERATIONS PLAN

DENVER—The Colorado Department of Public Health and Environment has been asked by CEMEX, Inc. to review an application to update its current design and operations plan to permit the burning of whole tires at its facility near Lyons.

The facility is located at 5134 Ute Highway 3, approximately three miles east of Lyons. CEMEX has an existing certificate of designation to burn tire scraps in its cement kiln to supplement the primary fuel. The facility has submitted a revised design and operations plan that addresses management practices to burn whole tires.

The Department of Public Health and Environment's Hazardous Materials and Waste Management Division is reviewing the application for technical merit, for compliance with the state's solid waste regulations and to assure the facility will not negatively impact human health or the environment. The department will send its findings to the Boulder County Planning Department, who will approve or deny the application.

Interested citizens may review the documentation during regular business hours through **Friday, July 18, 2003**, at

- Colorado Department of Public Health and Environment
  Hazardous Materials and Waste Management Division
  4300 Cherry Creek Drive South, Room B-215
  Denver, CO 80246-1530
  303/692-3331 Toll Free: 1-888/569-1831

-more-

CEMEX

2-2-2

- David Callahan
  Boulder County Planning Department
  2045 13th Street
  Boulder, CO 80306
  303/441-3930

Written comments should be sent to Glenn Mallory at the department's Denver, CO 80246 office by close of business on **Friday, July 18, 2003**. For further information, call Mallory at 303/692-3445.

###

Pat

STATE OF COLORADO

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Jane E. Norton, Executive Director

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Laboratory and Radiation Services Division
8100 Lowry Blvd.
Denver, Colorado 80230-6928
(303) 692-3090

Colorado Department
of Public Health
and Environment

May 12, 2003

RECEIVED
JUN 05 2003
BOULDER COUNTY ATTORNEY

Maureen Jacoby
Banks and Gesso, LLC
720 Kipling St., Suite 117
Lakewood, CO 80215

Re: Design and Operations Plan Update
SW BLD SOU 2.2

Dear Ms. Jacoby:

The Hazardous Materials and Waste Management Division (Division) of the Colorado Department of Public Health and Environment received an updated Design and Operations Plan on May 8, 2003 regarding CEMEX, Inc. located in Lyons, Colorado. The document is to bring current tire derived fuel-handling practices at the CEMEX cement plant located at 5134 Ute Highway, 3 miles east of Lyons on Highway 66 in Boulder County. The facility has a current Certificate of Designation under the solid waste regulations.

The Division has completed its initial review of the documentation. In the judgement of the Division, the documentation is complete. The Division will now begin its formal technical review.

Please note that it is not the intent or purpose of a preliminary completeness review to imply anything concerning the final decision of the Division. Also, the Division may request additional information in order to clarify aspects of the proposal.

If you have questions regarding this matter, please contact me at 303/693-3445.

Sincerely,

Glenn F. Mallory
Solid Waste Unit Leader
Compliance Program

cc John Lohr, CEMEX
Gabi Hoefler, Boulder County Health

STATE OF COLORADO

Bill Owens, Governor
Douglas H. Benevento, Executive Director

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Colorado Department
of Public Health
and Environment

April 14, 2003

RECEIVED
JUN 05 2003
BOULDER COUNTY AT

John Lohr
Plant Manager
CEMEX
P.O. Box 529
Lyons, CO 80540

Re: Request for Determination on Certificate of Designation
SW BLD SOU 1.1

Dear Lohr:

This letter is in response to your April 4, 2003 letter asking for the Hazardous Materials and Waste Management Division (the Division) to make a determination regarding the Certificate of Designation (CD) issued by Boulder County for the CEMEX (formerly Southwestern Portland Cement) to burn tires as part of its process. The CD was issued in 1990 after a technical review and approval by this Division. Specifically you have asked if the existing CD requires an amendment and if it does the exact nature and scope of that amendment.

In order to answer your question I have reviewed the Division files on your facility, the solid waste statute (C.R.S 30-20-100.5 *et seq.*), and the Regulations Pertaining to Solid Waste Disposal Sites and Facilities (6 CCR 1007-2). Based on this review and my understanding of CEMEX's proposal to burn whole tires at their facility, I do not believe that an amended Certificate of Designation is required. However, it is clear that an updated operations plan is in order. This is based on the fact that the major technical concern, burning tires, has not changed since the initial recommendation was made and the CD issued. The information in the files and the approval speak to the use of either shredded or whole tires. CEMEX is now proceeding to use whole tires. This is not a change to the original concept. The method of working with the tires once received by the facility does appear to be somewhat different and therefore an updated operations plan should be developed.

An updated operations plan should provide the following information in one concise document.

- A current list of company contacts and telephone numbers.
- A detailed description of the anticipated method of receiving and handling the tires.
- Flow diagrams to supplement the narrative description.
- An estimate of the number of tires to be used per unit of time.
- Revised or updated fire protection information for any tires that may be stored onsite.

- Details should include information on any anticipated storage of tires.
- The vector control plan should be revised in a manner that is commensurate with any outside or uncovered storage of whole tires.
- Financial assurance to cover closure (removal of any stored tires) and any anticipated post-closure activities. It is possible that there may be very limited to no post-closure activities once any tires are removed.

There are additional comments that need to be brought forth. First, I note that the original documents speak to using the EP Toxicity Test to test cement kiln dust (CKD). The Toxicity Characteristic Leaching Procedure (TCLP) for making a hazardous waste determination replaced this analytical method in the mid-1990's. Because of the extreme difference in pH between the CKD and the acid used in extraction for either test I question the usefulness of either test and recommend that the testing requirement be eliminated. It is doubtful that the data would be of any real use from a technical standpoint. Second, you need to remember that Boulder County was the issuing governmental agency for the Certificate of Designation and as such has final say over a potential amendment to the Certificate of Designation.

If you have questions regarding this matter I may be reached at 303/692-3445.

Sincerely,

Glenn F. Mallory
Solid Waste Unit Leader
Compliance Program

cc Gabi Hoefler, Boulder County Health Dept.

SW BLD SOU 1.1

CEMEX

APR 08 2003

April 4, 2003

RECEIVED
JUN 05 2003
BOULDER COUNTY ATTORNEY

Mr. Glenn Mallory
Section Chief, Solid Waste Program
Hazardous Materials and Waste Management Division
Colorado Department of Public Health and Environment
HMWMD-B2
4300 Cherry Creek Drive South
Denver, Colorado 80246-1530

RE: Request for Determination Regarding Amendment to Existing Certificate of Designation for the Use of Tire Derived Fuel
CEMEX, Inc., Lyons Cement Plant
Boulder County, Colorado

Dear Mr. Mallory:

CEMEX, Inc. would like to re-commence the use of tires as fuel at our Lyons Cement Plant. To this end, we request that your division make a determination on whether our existing Certificate of Designation requires an amendment, and if so, the exact nature and scope of that amendment.

History

On February 1, 1990, the Boulder County Board of County Commissioners (BOCC) approved Resolution 90-59 conditionally approving Boulder County Land Use Docket #SU-88-21 ("Lyons Rubber Recycling Facility"), including a Solid Waste Disposal Site Certificate of Designation for the purpose of burning used tires as fuel at the Lyons Cement Plant (formerly known as the Southwestern Portland Cement Company and owned by Southdown, Inc.)

Your department recommended approval of the original Certificate of Designation application, with contingencies, in a letter to the BOCC dated March 7, 1989.

The original application allowed the use of whole or shredded tire-derived fuel ("TDF"), including storage of tires in an on-site open stockpile. In the previous application, tire chips were then moved via front-end loader from the stockpile to a hopper. From the hopper, material was metered into a material handling elevator which discharged into a screw conveyor which in turn dropped material into the riser duct at the discharge of the kiln.

The Lyons Cement Plant proceeded to burn shredded tires as kiln fuel between1990-1993, at which time the practice was discontinued due to the difficulty of obtaining an economical supply of shredded tires.

United States Operations
P.O. Box 529, Lyons, Colorado. 80540. USA. Phone: (303) 823-2100, Fax: (303) 823-2199

During its use of TDF in the early 1990's, the Lyons Plant met all requirements for reporting and stack testing as required by the Special Use Permit and Certificate of Designation. Since that time, management has continued to maintain the permits and bonds necessary to keep the option of TDF use open to Southdown, Inc. and later CEMEX. It has always been our intention to re-commence the use of TDF at an appropriate time.

Current Proposal

As you know, the Lyons Cement Plant conducted a test burn in November 2002 to test the feasibility and safety of burning whole tires. Our current plan includes only the use of whole tires, all of which will be obtained from local tire dealers. We expect to use up to 700,000 whole tires per year.

No outside storage of tire material is planned. Instead, trailers will deliver whole tires to the site. The tires will be automatically discharged via a tipping mechanism onto a conveyor system and separated and conveyed into the riser duct for burning. A very similar process is already successfully operating at our Clinchfield Cement Plant in Georgia. Please see attached photographs of the storage and loading procedure at this site.

Our November test burn confirmed that the burning of whole tires is feasible, and that CEMEX can meet the emission limitations in our State (air) Operating Permit while burning TDF.

We would appreciate your review of our proposed use of whole tires, and determine the specific requirements, if any, for an amendment to our existing Certificate of Designation. Please let me know if I can provide you with additional documentation or information necessary to make this determination.

Sincerely,

John Lohr
Plant Manager

attachment: Clinchfield Photographs